

Deputy Director Igor Vulje participated in a bilateral meeting at the EU Council with the Belgian presidency, which took place on Thursday, January 11, 2024. The meeting provided an opportunity for representatives of the delegations of EU member states to exchange their views on the new legislative initiative of the European Commission, the Regulation on establishing additional procedural rules for the implementation of Regulation (EU) 2016/679 (General Data Protection Regulation) with Belgian colleagues (as part of the activities of the Council of the EU presidency).

Namely, the Agency for Personal Data Protection actively participates and provides expert support to the Ministry of Justice and Administration in all activities related to the work of the Data Protection Working Party (WPDP) of the EU Council. It is important to emphasize that the effective implementation of EU data protection rules is a prerequisite for ensuring the protection of the right to personal data protection under Article 8(1) of the Charter of Fundamental Rights of the European Union ("Charter") and Article 16(1) of the Treaty on the Functioning of the European Union (TFEU).

The consistent application of the General Data Protection Regulation also depends on the effective functioning of the cross-border enforcement system, where a unified decentralized system aims to ensure consistent interpretation and application of the General Data Protection Regulation while preserving the principle of proximity, based on which individuals can turn to their local data protection authority. For this reason, the current focus of work in this Working Party is related to the adoption of a new legislative act, the Regulation on establishing additional procedural rules for the implementation of Regulation (EU) 2016/679 (General Data Protection Regulation).

The aim is to facilitate the implementation of the General Data Protection Regulation, as the current diversities within national procedures and practices negatively affect cooperation between data protection authorities. In this regard, based on the provisions of this Proposal, it should be achieved that investigations are completed in a more time-efficient manner and that individuals are provided with quick and effective actions by supervisory authorities or legal remedies in cross-border cases, and ultimately, to simplify the process of cross-border cooperation. This Proposal for a regulation builds on the "wish list" that the European Data Protection Board (EDPB) submitted to the European Commission in October 2022, which contains a number of aspects of national procedural law that are intended to be harmonized at the EU level.

The European Data Protection Board (EDPB) and the European Data Protection Supervisor (EDPS) have issued an opinion on this legislative proposal, which is available at the following link: https://edpb.europa.eu/our-work-tools/our-documents/edpb-edps-joint-opinion/edpb-edps-joint-opinion-012023-proposal_hr.